

LAM17K07112 LAM17K07112

County: los-angeles

Division: Civil Law and Motion

Department: 26

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Case Number: LAM17K07112 Hearing Date: July 27, 2026 Dept: 26

TENTATIVE RULING:

Judgment Creditor Delbert Cannon's Motion for Assignment

Order is Granted.

The proposed order filed on 04/21/2026 is signed and entered this date.

ANALYSIS:

On June 2, 2017, Plaintiff Delbert Cannon ("Judgment Creditor") filed this action against Defendants Panya Patee ("Judgment Debtor Panya Patee"), Thong Kam Patee ("Judgment Debtor Thong Patee"), and Becky Thi ("Judgment Debtor Thi"). On May 30, 2018, the Court entered default judgment in favor of Judgment Creditor and against Judgment Debtor for the total amount of \$5,145.00. (Judgment, 05/30/18, ¶6.) The Court renewed the judgment on August 22, 2025. On April 15, 2026, Judgment Debtor Panya Patee was sworn, examined, and discharged. (Minute Order, 04/15/26.)

Judgment Creditor filed the instant Motion for an Assignment Order on April 21, 2026. Judgment Creditor served the Motion on Judgment Debtors by first-class mail on the same date. No opposition has been filed to date.

Discussion

Under Code of Civil Procedure, section 708.510, subdivision

(a), the moving statute, the Court may order the judgment debtor to assign to the judgment creditor or to an appointed receiver all or part of a right to payment due or to become due. The types of payments that can be assigned include wages due from the federal government if not subject to a withholding order, rents, commissions, royalties, patent or copyright payments, and insurance policy loan value. (Code Civ. Proc., § 708.510, subd. (a).)

Relevant factors the Court may take into consideration when making an assignment order include the judgment debtor's reasonable requirements if they are a natural person, payments the judgment debtor is required to make to satisfy other judgments and wage assignments, the amount remaining due on the judgment, and the amount to be received in satisfaction of the right to payment that may be assigned.

(Code Civ. Proc., § 708.510, subd. (c).) Construing all the applicable statutes together, the "assignment order" contemplated by Code of Civil Procedure, section 708.510, et seq. must include a court order that assigns a right to payment outright (not simply an order directing the judgment debtor to do so).

Here, Judgment Creditor seeks an order assigning rental income earned by Judgment Debtor Panya Patee with respect to the property located at 2415 Pacific Avenue, Long Beach, California.

Judgment Debtor Panya Patee testified at the judgment debtor examination that Judgment Debtor Patee receives \$2,500.00 a month in rent from lessee Suphaphorn Charukulvanich. (Motion, Mehrban Decl., ¶12.)

Assignment orders may include rents received by the Judgment Debtor. (Code Civ. Proc., 708.510(a)(2).) Based on the foregoing in-court

testimony, Judgment Creditor has shown that Judgment Debtor Panya Patee receives rent payments to which Judgment Creditor may be granted a right of assignment to enforce the judgment.

In determining whether to order assignment or the amount of assignment, the Court may consider various factors including the requirements of the judgment debtor and other payments the judgment debtor is required to make. (Code Civ. Proc., § 708.510(c).) Judgment Debtor failed to oppose the Motion and therefore provided no relevant information for the Court to consider. Accordingly, the Court grants the motion for an assignment order in the full amount sought, to the point that the judgment is satisfied.

Conclusion

Judgment Creditor Delbert Cannon's Motion for Assignment
Order is Granted.

The proposed order filed on 04/21/2026 is signed and entered
this date.

Moving party to give notice.